OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

Berry sewage plant at capacity and the upgrade is unfunded: 12 questions to Council

Sent 17 October 2026 · To Shoalhaven City Council · Response requested by 26 October 2026

OPEN LETTER
To: Mr Andrew Constance, Chief Executive Officer, Shoalhaven City Council
Copied to: Clr Peter Wilkins, Deputy Mayor; all councillors; the Chairperson, Audit, Risk and Improvement Committee
From: Stephen Prothero, Eye on Shoalhaven Council
Date: 17 October 2026
Subject: Berry sewage treatment plant and network — where Council stands, how it got there, what the fix costs, and what you intend to do about it (report CL26.289)
STATUS OF THIS LETTER
This is a public open letter to the Chief Executive Officer. It is published by Eye on Shoalhaven Council as a matter of public interest journalism.
It is not a complaint. It is not a complaint under Council's Complaint Handling Policy, and it is not to be registered, assessed or managed as one.
It is not a Code of Conduct complaint. It does not allege a breach of the Code of Conduct by any person, and it is not to be referred to the Complaints Coordinator, a conduct reviewer or the Office of Local Government.
It is not an access application. It is not an application under the Government Information (Public Access) Act 2009 (NSW), formal or informal, and no statutory time limit is started by it.
It is not a request for service. It does not ask Council to take action, to make a decision, or to review a decision.
It is a set of questions put to a public official in the same way a journalist puts questions to the head of an organisation. The Chief Executive may answer all, some or none of the questions, and may do so in whatever form and at whatever time he chooses. Some questions can be answered in a line and others may need work. If the Chief Executive intends to comment on any question, a short reply to this email saying so is all that is needed.
Replies will be published in full. If no reply is received, that will be recorded as it stands.

Mr Constance,
On 27 October Council will receive report CL26.289, Residential Growth Planning - Berry (agenda pages 133 to 138). It says the Berry Sewage Treatment Plant "is at capacity", that the sewer network has constraints at trunk mains and four pump stations, and that funding for the major upgrade "is not currently included within Shoalhaven Water's Long Term Financial Plan". It gives no cost. I am writing to ask you to explain the position

Council is in, how it arrived there, and what you intend to do. Every fact below is taken from the report, from other Council papers, from the NSW Planning Portal or from Shoalhaven Water's website, and the source is given.

1. What the report says

• The plant's design limit is 3,500 equivalent persons. About 500 equivalent persons of capacity remain, roughly 200 dwellings at 2.4 persons each. "Most of this remaining capacity is required to service the Hitchcocks Lane subdivision", which is expected to deliver "at least 120 dwellings".

• Berry Pump Station No. 8 is "the sole transfer point conveying sewage from the network to the plant". The report says upgrades are needed to the pumping station, rising main and plant inlet works.

• Staff identify "licence exceedance risks", wet weather overflow risk, and "continuing engagement with the NSW Environment Protection Authority".

• Shoalhaven Water's Development Servicing Plan, in force from January 2026, limits Berry's growth to 120 equivalent tenements, including "already approved subdivisions and infill development".

• Council resolved on 29 July to ask for a report on expediting Berry's planning so that growth could be considered "in the current STP upgrade design". Staff recommend instead that growth be considered through the Housing Strategy, and also say there is "limited opportunity to defer" the design work.

2. Matters that do not line up

• The report gives the design limit as 3,500 equivalent persons. Shoalhaven Water's website says the plant "treats sewerage for up to 3,000 equivalent persons" and that it was updated in 2006.

• The plant is "nearing" its limit in the Background and "at capacity" in the Conclusion.

• Demand reaches about 5,000 "by 2046" in one place and "5,000 residents by 2050" in another. The discussion paper at CL26.287 (Attachment 1, Appendix 2) forecasts Berry and Surrounds at 5,088 people in 2046, a rise of 223 from 2021.

• The report says Council requested it on 29 June (MIN23.198), and also on 29 July (MIN26.198).

• The servicing plan allows 120 equivalent tenements for the whole of Berry. The discussion paper says Hitchcocks Lane alone is expected to deliver 119 lots and 120 to 150 homes.

3. How the town got here

The NSW Planning Portal records that the review of the Hitchcocks Lane rezoning commenced on 18 December 2017 and was published on 8 November 2021, to allow "approximately 150 lots". From April 2020 Council discounted its water and sewer developer charges, and it largely ended the discounts on 1 July 2025. The papers I could read from the rezoning years do not say what Shoalhaven Water advised about plant capacity. I have not been able to open Council's papers of 2017 and 2020 for that purpose.

4. Questions

The position now

Question 1. What is the plant's design limit, in equivalent persons, and which of the two figures (3,500 or 3,000) is correct? What is the current measured load, and how many equivalent persons are approved or committed but not yet connected?

Question 2. In each of the last five years, how many times has the Berry plant or network exceeded a licence condition, and how many wet weather overflows have occurred at Berry pump stations and the plant? Has the EPA issued any notice, direction or penalty, or required a pollution reduction program?

Question 3. Please reconcile the figures noted in section 2 above: the 3,500 and 3,000 limits; "nearing" and "at capacity"; 2046 and 2050; the 29 June and 29 July resolutions; and the 120 equivalent tenements in the servicing plan against Hitchcocks Lane's 119 lots. Is the "5,000" figure sewage load, or the population of Berry and Surrounds?

How Council got here

Question 4. When did Council or Shoalhaven Water first record that the Berry plant would need augmentation? What advice did Shoalhaven Water give during the 2017 to 2021 Hitchcocks Lane rezoning on plant and network capacity, and was capacity or funding made a condition of the rezoning, of any development consent or of any subdivision certificate?

Question 5. How was the 120 equivalent tenement growth allowance for Berry derived, and which approvals have already used it?

Question 6. Were developer charges for the Hitchcocks Lane subdivision discounted? If so, by how much, and which fund absorbed the difference?

The cost, and who pays

Question 7. What is the estimated cost of the upgrade, itemised between the plant, Pump Station No. 8, the rising main and the plant inlet works? What options did the Concept Options Assessment (September 2026) consider, and which does Shoalhaven Water prefer?

Question 8. Why is the work not in the Long Term Financial Plan? What is Council's expected funding split between developer charges, Sewer Fund customers across the Shoalhaven and State or Federal grants? Has any grant application been made, and what effect would the upgrade have on sewer charges?

What happens next

Question 9. What are the dates for completing the design, starting construction and commissioning? What interim measures are in place until then? At the current rate of approvals, when is capacity expected to be exhausted?

Question 10. What capacity and growth figure is the current design being sized for, and is it designed so that capacity can be added in stages if the Housing Strategy later directs growth to Berry? If the design cannot wait for the Housing Strategy, how does Council propose to avoid either under-sizing the plant or building capacity that is not needed?

Question 11. What is your intention regarding further approvals that would connect to the

Berry system while the upgrade is unfunded? Will Council apply any condition, staging or timing control to them?
Question 12. Will Council publish the Berry Sewage Treatment Plant Process Review (March 2026) and the Concept Options Assessment (September 2026)? Who within Council is accountable for matching sewer capacity to the approvals Council gives, and when will you report to councillors on the answers to these questions?

I ask for a response by Monday 26 October 2026, the day before the meeting. If any question cannot be answered, please say which and why, so the reason can be reported accurately.
I intend to publish this letter and any reply in full at steveprothero.substack.com and in the Eye on Shoalhaven Council group. If no reply is received by 26 October I will report that plainly.
No adverse finding has been made against any councillor, officer or Shoalhaven Water, and none is implied. Every factual statement in this letter is drawn from Council's published agenda papers and from the public sources named. Where I infer, I have said so. I will correct any error promptly and with the same prominence.
Yours sincerely,
Stephen Prothero

Stephen Prothero
Independent community journalist | Publisher, Eye on Shoalhaven Council
M | E
Substack: steveprothero.substack.com
Facebook group: https://www.facebook.com/groups/2691340771067814
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Documents relied on: Shoalhaven City Council, Ordinary Meeting agenda, 27 October 2026, item CL26.289 (pages 133 to 138) and item CL26.287 Attachment 1, Housing Strategy Discussion Paper, page 37 and Appendix 2; Shoalhaven Water, Our wastewater treatment plants (shoalwater.nsw.gov.au); NSW Planning Portal, Planning proposal: Hitchcocks Lane, Berry, residential investigation area; Eye on Shoalhaven Council, Berry's Sewage Plant Is Nearly Full, and Nobody Has Priced the Fix; The $6 Million Discount.